

SENATE BILL 1677

By Roberts

AN ACT to amend Tennessee Code Annotated, Title 40,  
relative to evidence.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 40-6-108, is amended by adding the following new subsections:

(d) Notwithstanding another law, evidence that is otherwise admissible shall not be excluded as evidence against the accused on the ground that the evidence was obtained in violation of the Constitution or laws of the United States, or in violation of the Constitution or laws of Tennessee, except as provided by subsection (e).

(e) Evidence may be excluded as evidence against the accused if each of the following conditions is met:

(1) The evidence was obtained by deliberate, reckless, or grossly negligent conduct, or by recurring or systemic negligence, that violated the Fourth Amendment to the United States Constitution, as interpreted by the United States supreme court, and as made applicable to the states through the supreme court's interpretations of the Fourteenth Amendment of the United States Constitution; and

(2) A refusal to suppress or exclude the evidence would contradict a clearly established holding of the United States supreme court.

(f) The courts of this state may not recognize or enforce an exclusionary rule under Tennessee law that extends beyond the requirements of the federal exclusionary rule, as defined by the United States supreme court.

(g) An order granting a motion to suppress evidence is subject to immediate interlocutory appeal directly to the Tennessee supreme court as provided in § 40-26-106.

SECTION 2. Tennessee Code Annotated, Title 40, Chapter 26, is amended by adding the following new section:

**40-26-106.**

(a) The state may take an immediate interlocutory appeal directly to the Tennessee supreme court from an order granting a motion to suppress.

(b) When the state appeals an order granting a motion to suppress under this section, the Tennessee supreme court shall:

(1) Stay proceedings in the trial court until the appeal is fully resolved;

(2) Expedite consideration of the appeal and resolve the appeal as quickly as possible; and

(3) Summarily affirm the order granting a motion to suppress evidence, without requesting merits briefing or holding oral argument, if the state concedes or acknowledges that a clearly established holding of the United States supreme court requires the suppression or exclusion of the evidence, and that the state is appealing to seek reversal or reconsideration of that United States supreme court decision on writ of certiorari.

(c) The state may petition for writ of certiorari from any decision of the Tennessee supreme court affirming the exclusion or suppression of the disputed evidence or confession. If the state petitions for certiorari, the stay of proceedings required by subdivision (b)(1) shall remain in effect until the petition for writ of certiorari is finally disposed of.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it, and applies to actions occurring on or after that date.